

Minutes of Senior Management Meeting No. 4 — Commercial Dispute Review

Nandira River Bridge Project — Package NRB-4

Document Reference:	SMM-NRB4-004
Date:	15-Apr-2022
Contract No.:	NHIA/NRB4/CW/2020-01
From:	Project Representative, National Highways Infrastructure Authority
To:	Distribution list — Employer, Engineer, Contractor senior management
Meeting:	Senior Management Meeting No. 4
Venue:	NHIA Project Office, Sector 9, Government Complex, Vantara City
Present:	Project Representative (National Highways Infrastructure Authority); Principal (Meridian Engineering Consultants); Director (Sagara Constructions Pvt. Ltd.)

1. COMMERCIAL DISPUTE — RETENTION ON VO-NRB4-004:

The Engineer's Principal summarised the position: Notice of Dissatisfaction CTR-NRB4-0098, confirmed procedurally valid in LCM-NRB4-001, contests only the contractual interpretation underlying ENG-NRB4-0038 and CIM-NRB4-002, with no factual or arithmetic matter in dispute. The Contractor's Director confirmed the Contractor's position remains as set out in CTR-NRB4-0091 and CTR-NRB4-0098, and expressed a preference to attempt amicable resolution under Sub-Clause 20.5 before any formal referral. The Employer's representative agreed to this approach and confirmed the Employer's position, consistent with the Engineer's assessment, remains unchanged. It was agreed the Contractor would initiate without-prejudice correspondence proposing a discussion meeting.

2. PROJECT BUDGET REVIEW:

The Employer's representative noted the project remains within the approved Contract Amount of VTD 42,000,000, with Variation VO-NRB4-004 and routine re-measurement tracking within contingency allowances; no budget concerns raised.

3. STAFFING:

The Engineer confirmed a replacement quantity surveyor has joined the Resident Engineer's team with effect from 01-Apr-2022, unrelated to the matters above.

4. EQUIPMENT PLANNING:

The Contractor's Director noted planning for demobilisation of the second tower crane following completion of girder erection works, expected Q3 2022.

5. PROCUREMENT STATUS:

Contractor confirmed all major material procurement for the remaining superstructure and pavement works is on schedule, with no outstanding long-lead items.

6. NEXT MEETING:

National Highways Infrastructure Authority

National Highways Infrastructure Authority

NHIA Project Office, Plot 14, Sector 9, Government Complex, Vantara City

To be scheduled following conclusion of the amicable discussion on the retention matter, or in any event within six months.

Minutes recorded by: Project Representative, National Highways Infrastructure Authority